

1 ENGROSSED HOUSE
2 BILL NO. 4408

By: Blancett of the House

3 and

4 Rader and Mann of the
5 Senate

6
7 An Act relating to State Question 780 data; amending
8 57 O.S. 2021, Section 632, as amended by Section 2,
9 Chapter 201, O.S.L. 2023, and as renumbered by
10 Section 6, Chapter 201, O.S.L. 2023 (43A O.S. Supp.
11 2025, Section 2-312.2), which relates to savings and
12 averted costs of the Oklahoma Smart Justice Reform
13 Act; requiring the Department of Corrections to
14 provide certain data to the Legislative Office of
15 Fiscal Transparency; requiring the Administrator of
16 the Courts to provide certain data to the Legislative
17 Office of Fiscal Transparency; clarifying the type of
18 crimes to be included in the data; requiring
19 calculation of data within certain time frame; and
20 providing an effective date.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. AMENDATORY 57 O.S. 2021, Section 632, as
23 amended by Section 2, Chapter 201, O.S.L. 2023, and as renumbered by
24 Section 6, Chapter 201, O.S.L. 2023 (43A O.S. Supp. 2025, Section 2-
312.2), is amended to read as follows:

Section 2-312.2. No later than July 31 of each year, the
Department of Corrections shall provide the Legislative Office of
Fiscal Transparency with data for the prior fiscal year ending June
30, reflecting the number of unique offenders and days served by

1 each offender, upon completion of the corresponding sentence, for
2 those convicted only of crimes modified by State Question 780. No
3 later than July 31 of each year, the Administrator of the Courts
4 shall provide the Legislative Office of Fiscal Transparency with
5 data necessary to calculate the annual savings and averted costs,
6 including the number of persons convicted only of crimes modified by
7 State Question 780 and the number of days sentenced for such crimes.
8 For purposes of this section, crimes modified by State Question 780
9 shall include only those crimes that were previously felonies that
10 are now misdemeanors and crimes that fall between the former dollar
11 threshold and current dollar threshold for crimes whose severity is
12 determined by a dollar threshold. No later than thirty (30) days
13 after being provided with the data from both the Department of
14 Corrections and the Administrator of the Courts, the Legislative
15 Office of Fiscal Transparency shall calculate the annual savings and
16 averted costs from the prior fiscal year that accrued to the state
17 due to the reduction of the number and length of incarcerations
18 attributed to the implementation of the Oklahoma Smart Justice
19 Reform Act. In making the calculation required by this section, the
20 Legislative Office of Fiscal Transparency shall use actual data or
21 best available estimates where actual data is not available. The
22 calculation shall be final and shall not be adjusted for any
23 subsequent changes in the underlying data.

24 SECTION 2. This act shall become effective November 1, 2026.

1 Passed the House of Representatives the 24th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate